



Linda S. Adams
Secretary for
Environmental Protection

California Regional Water Quality Control Board North Coast Region

Geoffrey M. Hales, Acting Chairman

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Arnold
Schwarzenegger
Governor

May 4, 2010

David Perata
Sonoma Cutrer Winery
4401 Slusser Road
Windsor, CA 95492

Dear Mr. Perata:

Subject: Enrollment in General Waste Discharge Requirements (SWRCB Order No. 97-10-DWQ) for Sonoma Cutrer Winery, Windsor, Sonoma County

File: Sonoma Cutrer Winery Domestic Wastewater System, 4401 Slusser Road, Windsor, California, WDID No. 1B09156RSON

Staff has completed review of the report of waste discharge received March 3, 2009, and amendments received June 17, 2009, October 15, 2009, October 28, 2009, November 3, 2009, March 4, 2010, and April 19, 2010 for the domestic wastewater treatment and disposal system serving Sonoma Cutrer Winery located at 4401 Slusser Road in Windsor. The proposed project is eligible for coverage under State Water Resources Control Board (SWRCB) General Order No. 97-10-DWQ, *General Waste Discharge Requirements for Discharges to Land by Small Domestic Wastewater Treatment Systems*.

Project Description

Kelder Engineering, on behalf of the Discharger, Brown-Foreman Corporation, proposes to install a new domestic wastewater treatment and disposal system to serve the Sonoma Cutrer Winery. The system is designed to accommodate wastewater flows associated with employees, special events guests and visitors of a newly constructed wine tasting room. The wastewater treatment and disposal system will consist of a grease interceptor, primary tank, recirculation tank, Advantex textile filter pod, pump station and 1,920 lineal feet of subsurface pressurized drip disposal line. The designed maximum treatment and disposal flow rate of the system is 1,800 gallons per day (gpd).

A cumulative impact analysis to determine potential impacts from Nitrate accumulation in groundwater was prepared using a procedure outlined in the document titled "Final Report: Assessment of Cumulative Impacts of Individual Waste Treatment and Disposal

California Environmental Protection Agency

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Systems" prepared for the Regional Water Board in 1982 by Ramlit Associates. According to the analysis the Advantex pretreatment unit would achieve a 60%-70% reduction in Nitrate (as Nitrogen) resulting in a concentration range of 12 mg/L to 16 mg/L Nitrate (as Nitrogen) in treated effluent being discharged to the sub-surface drip disposal field. The water quality objectives of 45mg/l Nitrate (as NO₃) and 10mg/L Nitrate (as Nitrogen) would be met in groundwater samples collected from monitoring wells located within a 100 foot radius of the sub-surface disposal field. The cited Nitrate (as Nitrogen) concentration range, based on system design and cumulative impact analysis, has been incorporated into this enrollment letter and into Monitoring and Reporting Program Order No. R1-2010-0051.

Technical review of submitted disposal area evaluation data and system design plans confirms the projects consistency with the North Coast Regional Water Quality Control Board Basin Plan. Staff concurs with the projects enrollment under SWRCB General Order No. 97-10-DWQ.

A condition of enrollment under SWRCB General Order No. 97-10-DWQ is compliance with monitoring and reporting requirements in Monitoring and Reporting Program Order No. R1-2010-0051. Order No. R1-2010-0051 requires surface inspections of the disposal field areas, collection of groundwater monitoring data, effluent sampling and groundwater sampling downgradient of the disposal field area.

In addition, a fee of \$1,380 is required to complete the General Order enrollment process. The fee corresponds to a Threat to Water Quality and Complexity of **3b** in the fee schedule listed in Section 2200 of Title 23, California Code of Regulations (CCR). Please make check payable to the State Water Resource Control Board and mail to the following address:

Water Quality Control Board
North Coast Region
5550 Skylane Blvd., Suite A
Santa Rosa, CA 95403

CEQA Compliance

A Mitigated Negative Declaration for Use Permit UPE07-0013, Sonoma Cutrer Winery Expansion, was adopted by Sonoma County on September 8, 2009.

In addition, the State Water Resource Control Board adopted a Mitigated Negative Declaration on November 18, 1997 for small domestic wastewater systems enrolled under SWRCB Order No. 97-10-DWQ. A determination was made that potential significant environmental impacts from discharges from small domestic wastewater systems would be mitigated to a level of insignificance by compliance with SWRCB Order No. 97-10-DWQ.

Site Specific Conditions

1. The Permittee shall not discharge waste in excess of the design treatment and disposal capacity of the domestic wastewater treatment and disposal system. Therefore, the Discharger shall operate the AdvanTex Unit such that treatment of the wastewater results in a Nitrate (as Nitrogen) concentration of 16 mg/L or lower. Waste water strength and hydraulic loading rate shall not exceed design specifications.
2. The sewage influent flow rate shall not exceed 1,800 gallons per day.
3. The Permittee shall ensure that the subsurface disposal system is maintained so that at no time will sewage or sewage effluent surface at any location.
4. There shall be no discharge of waste to any watercourse.
5. There shall be no discharge of waste to land not controlled by the discharger.
6. An adequate replacement area equivalent to the initial disposal area shall be designated and reserved. Incompatible uses of the initial disposal areas or the replacement area is prohibited.
7. The Discharger shall allow the Regional Water Board and/or other authorized representatives, upon presentation of credentials and other documents as required by law to: 1) enter upon the Discharger's premises where a regulated facility or activity is conducted to inspect at reasonable times any facilities, equipment, practices, or operations regulated or required by this permit, and 2) to sample or monitor at reasonable times for the purpose of assuring compliance to this permit, and 3) to have access to and copy, at reasonable times, any records that are required to be kept under the conditions of this permit.
8. All instances of noncompliance that may endanger public health or the environment shall be reported orally to the Regional Water Board as soon as possible, but no later than 2 hours from the time the Discharger becomes aware of the circumstances, and a written report shall be submitted such that an original signed written report is received by the Regional Water Board no later than five days after the event.
9. All reports required by this permit or other information requested by the Regional Water Board, or the State Water Resources Control Board shall be signed by the principal executive officer or a duly authorized representative of that person. Any person signing a document under this requirement shall make the following certification:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted, is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

10. Except insofar as may be modified by any preceding conditions, this permit action is contingent on: a) the discharge completed in strict compliance with the applicant's project description, and; b) compliance with all applicable requirements of the Regional Water Board's Water Quality Control Plan for the North Coast Region (Basin Plan).

Enclosed is a copy of State Water Resources Control Board Water Quality Order No. 97-10-DWQ (Enclosure 1). Also enclosed is Monitoring and Reporting Program No. R1-2010-0051 (Enclosure 2). Order No. 97-10-DWQ is effective upon your receipt of this letter. Monitoring in accordance with Order No. R1-2010-0051 should begin forthwith.

If you have any questions, please contact Rachel Prat of my staff at (707) 576-2542.

Sincerely,

Catherine Kuhlman
Executive Officer

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Enclosures:

- 1) State Water Resources Control Board Water Quality Order No. 97-10-DWQ
- 2) Monitoring and Reporting Program No. R1-2010-0051

cc: Bob Herr, Sonoma County PRMD, 2550 Ventura Avenue, Santa Rosa, CA 95503
Brown-Forman Corporation, 850 Dixie Highway, Louisville, KY 40210
Kurt Kelder, Kelder Engineering, 132 S. Cloverdale Blvd., Cloverdale, CA 95425